EXPLAINER

Administrative recourse: challenging a Church decision

Most of what a bishop does, he does by decree: closing a church, moving a pastor, withdrawing a permission, refusing a request. Canon law gives the person affected a way to challenge it. The way is real, but it is narrow, and it is lost more often to the calendar than to the merits.

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What a decree is

The Church governs mostly by *singular administrative acts*: decisions for a particular case made by someone with executive power cc. 35–58. The commonest is the *singular decree*, a decision or provision for a particular case that does not need anyone to have asked for it c. 48. The law surrounds it with modest but important safeguards. Before issuing a decree the authority must gather the facts and, as far as possible, hear those whose rights could be hurt c. 50. A decree must be in writing, and if it decides something it must give its reasons, at least in summary c. 51. It takes effect only when it is legitimately made known to the person c. 54. In case of doubt, a decree that restricts someone's rights or threatens a penalty is read strictly c. 36.

Silence is regulated too. When someone legitimately asks for a decree, the authority has three months to answer; after that, the answer is presumed to be no, so that the person can move on to recourse, although the authority still owes a real answer and may owe compensation c. 57.

Why there are no Church administrative courts

A dispute arising from an act of administrative power cannot be brought before a diocesan tribunal; it goes to the hierarchical superior or to an administrative tribunal c. 1400 §2. The drafters of the 1983 Code planned regional administrative tribunals, and the canons for them were removed shortly before promulgation. So the only administrative tribunal in the Church is the Supreme Tribunal of the Apostolic Signatura in Rome, which judges whether an act of a Roman dicastery violated the law, in its decision or in its procedure (*Pastor Bonus* art. 123; now *Praedicate evangelium* art. 197). Everything below that level is handled by superiors reviewing the decisions of those under them. That shapes what follows: recourse is less like a lawsuit and more like a structured, deadline-bound appeal to the person above the one who decided.

The three steps

The law begins with an ideal: whenever someone feels aggrieved by a decree, both sides should seek an equitable solution together, if need be with the help of wise mediators c. 1733. Bishops' conferences may require every diocese to set up an office for this. Neither the Canadian nor the American conference has done so, though some dioceses have one. Where conciliation fails or never starts, the steps are these.

STEP	DEADLINE	DETAILS
1. Ask the author to reconsider	10 useful days	A written request to the author of the decree to revoke or amend it. Filing it is also, by law, a request to suspend the decree c. 1734
The author answers, or does not	30 days	If a new decree comes within thirty days, the clock for recourse runs from it; if nothing comes, from the thirtieth day c. 1735
2. Hierarchical recourse	15 useful days	To the superior of the one who decided: for a pastor's or vicar's decree, the bishop; for a bishop's decree, the competent dicastery in Rome c. 1737
3. Contentious-administrative recourse	60 useful days	To the Apostolic Signatura, against the dicastery's decision, on legality alone (Lex propria art. 34 §1)

Useful days are days on which you knew of the decree and were able to act c. 201 §2. They are peremptory: when they run out, so does the right. The first step is skipped in a few cases, notably for a recourse to a bishop against a decree of someone under him, and where c. 57's presumed refusal is what you are challenging c. 1734 §3.

A recourse does not, by itself, stop the decree. The request for reconsideration asks for suspension; if the author does not grant it within ten days, the superior can be asked for an interim suspension, which is given only for grave reasons and with care for the good of souls c. 1736. The superior hearing the recourse can also suspend the decree for a grave cause c. 1737 §3. You may always use an advocate c. 1738.

What a recourse can win

The hierarchical superior has wide powers. He may confirm the decree, declare it invalid, rescind or revoke it, or amend, replace or modify it c. 1739. He reviews the merits: was this a wise and just decision, not merely a lawful one? The Signatura, at the third step, reviews only legality, asking whether the law was violated in the decision or in the procedure. It will not substitute its own judgment about what is best for a parish or a priest. So the strongest recourse is one that shows a concrete legal defect: no reasons given, the required consultation not held, the person never heard, a cause alleged that the law does not recognise, a decree never properly notified. "The bishop was wrong" is an argument for the dicastery; "the bishop broke the law" is the only argument that survives to Rome.

The special cases

Removal and transfer of pastors. A pastor holds office with stability, so the Code gives him his own procedure cc. 1740–1752. A bishop may remove a pastor whose ministry has become harmful or even merely ineffective, without any personal fault c. 1740, but for one of the listed causes c. 1741, after consulting two pastors from a stable group, after explaining the cause and inviting resignation, and after letting the pastor see the acts and answer in writing cc. 1742–1745. While a recourse is pending the bishop cannot appoint a new pastor c. 1747 §3. A transfer against the pastor's will follows a similar path, with canonical equity and the salvation of souls kept before the bishop's eyes cc. 1748–1752.

Parishes and churches. Only the bishop can erect, suppress or notably alter a parish, and only after hearing the presbyteral council c. 515 §2. A church may be relegated to "profane but not sordid use" only for grave causes, after the same consultation, and with the consent of those who hold rights in it c. 1222 §2. The Congregation for the Clergy's procedural guidelines of 30 April 2013 insist that the two decisions are distinct, that a parish and a diocese are separate juridic persons, that a just cause suffices to alter a parish but a grave cause is needed to close a church, and that a grave cause may be made up of several just causes taken together, each case judged on its own. Parishioner groups across Canada and the United States have used these rules, with mixed results.

Religious dismissed from their institute. A decree of dismissal must state the member's right of recourse, and since 2023 the member has thirty days to go directly to the competent authority, without first asking the superior to reconsider; the recourse suspends the dismissal c. 700. For an institute of pontifical right that authority is the Holy See. See Clergy and religious in difficulty.

Employees and clergy. A lay employee whose contract is ended usually has a civil remedy, not a canonical one, unless a decree touched a canonical office or right. A cleric removed from an office other than pastor, or whose faculties are withdrawn, has the ordinary three-step recourse. Where a penalty is at stake, recourse suspends it c. 1353; see Canonical crimes and penalties.

Who may bring a recourse

Anyone "who claims to have been aggrieved" by a decree may have recourse for any just reason c. 1737 §1. The hard question is who is aggrieved. A pastor removed from his parish plainly is. When a parish is merged, the Signatura has tended to ask whether an individual parishioner is injured in a right of his own, or only in his attachment to a community whose rights belong to the parish as a juridic person, while showing more openness to parishioners challenging the relegation of a church. The debate is unresolved, and it is one reason parish recourses are best brought by a clearly identified group with a clear account of the rights it claims.

What the aggrieved reader needs to hear

Three honest things. First, the remedy is real: decrees are reversed, by bishops on reflection and by Rome on recourse, more often than the silence suggests. Second, it is narrow: it cannot make a bishop keep a priest or a parish he has lawfully decided to let go, and it cannot order compensation for hurt feelings. Third, deadlines kill more recourses than merits do. Ten useful days is very short. The practical first step, before any argument, is to get the decision **in writing**, with reasons and a date of notification, because without that there is nothing to challenge and no way to count the days. Then expect patience to be required: a dicastery may take months to a year or more, and the pattern of silence is common enough that c. 57 exists to deal with it.

In practice: write to the author the moment you receive a decree, politely and briefly, asking for revocation and suspension, and keep proof of the date. That one letter preserves every later right. Eastern Catholics follow the parallel canons of their own Code (CCEO cc. 996–1006). For how I help with a recourse, see Recourse against Church decisions; for the rights behind it, Your rights in the Church and When the system feels against you; and for the basics, What is canon law?, Canon law and theology and the FAQ.

KEY CANONS

- **cc. 48–51** A decree: in writing, with reasons, after hearing those affected
- **c. 57** Three months of silence is a presumed refusal
- **c. 201 §2** Useful days: days you knew and could act
- **c. 1733** Seek an equitable solution first
- **c. 1734** Ask the author to reconsider: 10 useful days
- **c. 1737** Hierarchical recourse: 15 useful days
- **c. 1739** What the superior may do
- **cc. 1740–1752** Removal and transfer of pastors
- **c. 700** Dismissed religious: 30 days, suspensive

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